

Court No. - 21

Case :- WRIT - C No. - 8292 of 2023

Petitioner :- Salauddin Siddiqui

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Qaisar Kamal Ansari, Mo. Saif

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions.

Put up as fresh on 3.04.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 20.3.2023

SL

Court No. - 21

Case :- WRIT - C No. - 8292 of 2023

Petitioner :- Salauddin Siddiqui

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Qaisar Kamal Ansari, Mo. Saif

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Heard counsel for the petitioner and Sri N.K. Tiwari for the respondent-Electricity Department.

The petitioner has challenged two recovery certificates. One issued in the name of the petitioner in respect of electricity dues and the other against his deceased father in connection with the assessment made under Section 126 of the U.P. Electricity Supply Code, 2005 in a case of theft of electricity.

In respect of the recovery for the electricity dues against the petitioner, we leave it open to him to file objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and in which event, the said objection shall be decided strictly in accordance with law.

The father of the petitioner is stated to have died in the year 2000. Since the entire proceedings for recovery were undertaken against the deceased father of the petitioner, therefore, we quash the said proceedings and leave it open to the respondents to issue notice to the petitioner and pass fresh order under Section 126 strictly in accordance with the provisions of the U.P. Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.4.2023

SL